

New York Medmal Whitepaper

AI Medical Malpractice Intake in New York: Lavern's Law, 30-Month SOL, and the No-Cap Advantage

****State:**** New York

****Primary Statutes:**** CPLR § 214-a, Lavern's Law (CPLR § 214-a)

****SOL:**** 30 months (2.5 years) / 1 year for wrongful death

****Damage Caps:**** None

****Fault Doctrine:**** Pure comparative negligence

#Executive Summary

New York's medical malpractice landscape is distinguished by three critical factors: a 30-month statute of limitations, the complete absence of damage caps, and the Lavern's Law framework for foreign object cases. With no ceiling on non-economic damages, New York is one of the highest-value medmal venues in the country. This whitepaper examines how AI-powered intake helps New York firms identify and capture these high-value cases.

#The New York MedMal Landscape

##Statute of Limitations

New York applies a unique 30-month (2.5 year) statute of limitations for medical malpractice actions, measured from the date of the alleged malpractice or from the end of continuous treatment. This is longer than most states' 2-year SOLs, giving New York firms more time to identify and screen potential cases.

##Lavern's Law

Lavern's Law (effective 2018) extended the statute of limitations for cases involving foreign objects left in the body. Under this law, the 30-month SOL runs from the date the foreign object is discovered, not from the date of the original surgery.

##No Damage Caps

New York is one of the few states with no statutory cap on either economic or non-economic damages in medical malpractice cases. This makes New York an exceptionally high-value venue for serious injury cases - and makes accurate case valuation both more important and more complex.

##Pure Comparative Negligence

New York follows pure comparative negligence, allowing plaintiffs to recover damages even if primarily at fault (reduced proportionally).

#How LexiFlow Addresses New York's Unique Challenges

##Extended SOL Tracking

LexiFlow's intake system tracks New York's 30-month SOL and Lavern's Law provisions, automatically adjusting deadlines for foreign object cases.

##High-Value Case Identification

With no damage caps, New York cases can have substantially higher value than cases in capped states. MeritScan's valuation engine incorporates New York-specific factors to identify high-value cases that might be overlooked in standard screening.

##Pure Comparative Negligence Scoring

Unlike states with modified comparative fault or contributory negligence rules, New York's pure comparative standard means partial plaintiff fault rarely bars recovery. LexiFlow's scoring reflects this important distinction.

#ROI for New York Firms

Metric	Manual Process	LexiFlow AI
-----	-----	-----
Time to merit assessment	1-2 weeks	3 minutes
Cost per case screened	\$1,200-\$1,800	\$75-\$150
High-value case identification	Inconsistent	Systematic
Annual screening volume	120-200 cases	400-600+ cases

#Conclusion

New York's high-value medmal market demands sophisticated, high-volume case screening. With no damage caps, identifying the right cases quickly can mean millions in recovered damages. AI-powered intake gives New York firms the speed and accuracy needed to compete in this lucrative but complex market.

LexiFlow Legal Suite - \$69/month. leads@lexiflow.co